fundamentalism…it is a fallacy and an error of law to proceed on the assumption…that the use of words "Hindutva" or "Hinduism" per se depicts an attitude hostile to all persons practising any religion other than the Hindu religion… It may well be that these words are used in a speech to promote secularism or to emphasise the way of life of the Indian people and the Indian culture or ethos, or to criticise the policy of any political party as discriminatory or intolerant.'[64]

Unsurprisingly, this Supreme Court judgment found its way into the campaign manifesto of the BJP in the general elections of the following year, 1996. The party claimed the Supreme Court had 'endorsed the true meaning and content of Hindutva as being consistent with the true meaning and definition of secularism'. This could be said to mark the beginning of the constitutional acceptability of the concept of Hindutva—something that arguably is no longer in question, since on 2 January 2017, the Supreme Court of India declined to reconsider its 1995 judgment.

So the Constitution and its custodians have made their peace with Hindutva. But can Hindutva wholeheartedly accept the Constitution?

The more conformist of the two BJP prime ministers India has had, Atal Behari Vajpayee (in office from 1998 to 2004), took a moderate approach to constitutional change, arguing that 'even in the mightiest fort one has to repair the parapet from time to time' (while V. P. Singh cautioned that the 'tenants' should not go for 'rebuilding in the name of repairs').[65] His rule saw no dramatic change in India's constitutional arrangements, though his government did conduct a constitutional review that produced a 1,979-page report, universally unread. There has so far been no dramatic challenge to the Constitution under the second BJP prime minister, Narendra Modi, either, but here it is far less certain that the present approach will endure.

Deen Dayal Upadhyaya, who rejected the Constitution of India in conception, form and substance, would be astonished to find his supposed acolytes extolling its every line and holding special commemorations in Parliament with grandiloquent speeches to mark the anniversary not just of its adoption—which, after all, is Republic Day—but even of its passage by the Constituent Assembly in a newly anointed